

**Placer County Superior Court
10820 Justice Center Drive, Roseville**

**PROBATE CALENDAR NOTES
July 20, 2026, 8:30 AM, Department 2
101 Maple Street, Auburn**

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NOTICE: CHANGE OF CALENDAR DEPARTMENT AND DATES

Beginning July 6, 2026, the Probate Calendar will be heard Mondays, 8:30 a.m., in Department 2, located at the Historic Courthouse, 101 Maple Street, Auburn.

These calendar notes are provided pursuant to Local Rule 80.1.4 for the probate calendar set for hearing **July 20, 2026, 8:30 AM, in Department 2**, the Hon. Glenn M. Holley, presiding.

Pursuant to Local Rule 80.1.4, these calendar notes are not a tentative ruling on the merits of any matter before the court. Remote appearances are generally available for this calendar, as provided in the Local Rules. Local Rule 10.24(G), governing remote appearances for most probate, conservatorship, and guardianship cases applies to this calendar.

Updated notes may be posted at any time and will generally be updated prior to the hearing. Staff may respond to limited questions concerning calendar notes; however, court staff may not give legal advice to parties or attorneys. Messages may be left for the Office of Legal Research at (916) 408-6119.

1. S-PR-0004831 Garibaldo, Gustavo - In Re the Special Needs Trust of

Petition for GAL fees is recommended for approval as prayed.

2. S-PR-0009374 Sagaria, Scott Joseph - Estate of

Status hearing

Appearance is required for continued status hearing.

Amended 1st / 2d practice administrator accounts

Appearance is required for continued hearing on 1st / 2d practice administrator accounts.

Amended petition objecting to accounts, to surcharge practice administrator, and re breach

Appearance is required for continued hearing on amended petition objecting to accounts, to surcharge practice administrator, and re breach.

3. S-PR-0011958 In Re the Estate of Berson, Lynn Mae

Petition for final distribution is recommended for approval as prayed.

4. S-PR-0012867 In Re the Estate of Koons, Verlin Willis

Missing notice of service for petition for final distribution. Missing service of notice of hearing.

5. S-PR-0012900 In Re the DTRM Power Trust

Motion to be relieved as counsel of record is recommended for approval, with relief to be effective upon service of the signed order after hearing.

6. S-PR-0013022 In Re the Estate of Hintze, Donna Jean

Petition for final distribution is recommended for approval as prayed.

7. S-PR-0013025 In Re the Andrew Bauer Rev Trust

Appearance is required for continued hearing on petition to suspend and remove cotrustee and for other relief.

Missing service of notice of hearing to THD Enterprises, Inc.

The petition does not appear to adequately distinguish between Melanie Hirsch; Melanie Hirsch, cotrustee; Melanie Hirsch, president of THD Enterprises, Inc.; and THD Enterprises Inc. itself. For example, the sale contract and promissory note were entered into between trustee Andrew Bauer and THD Enterprises, Inc.; it does not appear Hirsch individually is a party to either agreement.

Status of mediation / settlement is needed.

8. S-PR-0013366 In Re the Estate of Slaughter, Christina P.

The estate is not in a condition to be closed: creditor claim by Renown Health remains outstanding. Executors have not rejected the claim and Renown Health has not deemed it rejected. Although executors argue the creditor actually asserts no claim, the claim must be addressed as filed.

The estate has insufficient cash resources to pay requested attorney fees with no explanation for how fees are to be paid. The court ordinarily will not approve attorney fees when there are insufficient assets to pay requested fees.

9. S-PR-0013394 In Re the Estate of DeRee, Patricia M.

Inventory and appraisal includes assets not on hand at the date of decedent's death (advances by petitioner to the estate), without explanation.

Ordinary personal representative fees are incorrectly calculated. After adjusting the I&A total (see above), ordinary fees are \$14,439.75, assuming no receipts, gains, or losses. Any waiver of all or a portion of ordinary fees should be explicit.

Clarification is needed: property on hand omits virtually all assets inventoried and appraised, including a vehicle, the piano, and real property, without explanation. Sale of real property and any other actions taken under the IAEA are to be reported in the petition. C.R.C. 7.250.

10. S-PR-0013418 In Re the Estate of Hiebert, Kurt Alan

Petition for final distribution is recommended for approval as prayed.

11. S-PR-0013652 In Re the Shickle Fam Trust

Appearance is required for continued hearing on petition to determine trust property, to recover assets, and for other relief.

12. S-PR-0013767 In Re the Waltraud Trust

Petition to determine trust property

Appearance is required for continued hearing on petition to determine trust property.

Petition to determine invalidity of trust

Appearance is required for continued hearing on petition to determine invalidity of trust.

Missing notice of hearing. Missing service of notice of hearing.

13. S-PR-0013801 In Re the Escobar Rev Liv Trust

Petition to rescind / reform trust and for other relief

Appearance is required for continued hearing on petition to rescind / reform trust and for other relief.

Notices of hearing filed on form DE-115 do not adequately describe any personal property at issue. The reference to unspecified "accounts" does not appear to be "[a] description of the subject property sufficient to provide adequate notice to any party who may have an interest in the property." Prob.C. § 851(c)(1). Although counsel for trustee waived this defect at the prior hearing, notice appears to be insufficient as to Nathan Roeder, Aaron Escobar, Steven Roeder, and Madison Torosyan.

Motion to quash deposition for production of business records

Appearance is required for hearing on motion to quash deposition subpoena for production of business records.

14. S-PR-0013910 In Re the Ernestine Contreras Garcia Liv Trust

Petition to suspend trustee, compel account, appoint interim trustee

Appearance is required for continued hearing on petition to suspend trustee, compel trustee account, and appoint interim trustee.

Trustee account

Appearance is required for hearing on trustee account.

Missing notice of hearing re trustee account. Missing service of notice of hearing.

Missing verification to account. Prob.C. § 1021.

Account, as filed, does not comply with any format or content requirements of Prob.C. § 1060–1064: missing opening property on hand schedule in required form; missing other charges schedules (receipts, gains on sale); missing credits schedules (disbursements, distributions, losses on sale); trustee's time log is not part of an accounting; trustee may not demand payments from Ricardo Garcia through an account; missing final property on hand schedule.

Missing required trustee report. Prob.C. § 1064.

The account, as filed, cannot be approved.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the parties and the court to prepare for the hearing.

15. S-PR-0014079 In Re the William E. Lauritsen Liv Trust

Petition to determine trust property is recommended for approval as prayed.

16. S-PR-0014081 In Re the Estate of Dutt, Brahm

Missing sufficient notice of hearing, service of notice of hearing, and publication for petition to administer estate. Notice of hearing as filed, served, and published relates only to a July 17 hearing that has been rescheduled by the court, rendering such notice ineffective. Petitioner was notified of the revised hearing date by clerk's notice dated June 1. New notice, service (or waiver(s)), and publication are needed.

17. S-PR-0014082 In Re the Phillip S. Casebolt and Ethel M. Casebolt Rev Trust

Petitioner response is needed: proposed trustee Christa Kinsman is required to post bond. Prob.C. § 15602(a)(3). Bond is not addressed in the petition.

18. S-PR-0014083 In Re the Estate of Gibson, Robert

Appearance is required for hearing on petition to determine interest in insurance proceeds.

Missing sufficient service of notice of hearing. Personal representative of the estate of Robert Gibson or other successor(s) to decedent must be served. Nothing in the petition establishes that the estate of decedent Robert Gibson is being administered in any jurisdiction. Service to decedent's minor children is insufficient under Prob.C. § 851(a)(2) (and compare C.R.C. 7.51(a)(1)-(2) & (d)) because petitioner has not been appointed fiduciary for minors in any capacity. Petitioner cannot be appointed guardian ad litem in this proceeding because she has a direct conflict of interest with them.

Points and authorities needed: petitioner does not show how § 850 relief is available where neither decedent nor the estate holds, has held, or claims any interest in the disputed proceeds.

Petitioner response is needed: petitioner provides insufficient information concerning the dissolution action in Sacramento County Superior Court. Petitioner alleges said action "is still pending," suggesting said court previously granted a status-only dissolution decree pursuant to Fam.C. § 2337. If that occurred, the court was required to "expressly reserve jurisdiction for later determination of all other pending issues." Id. at subdiv. (f). Petitioner's claim that decedent violated ATROs and she is entitled to the proceeds of his life insurance policy appears to fall within "all other pending issues." Accordingly, the petition here provides insufficient information to determine whether petitioner's claim can be heard in this court.

Petitioner response is needed: the petition includes insufficient information concerning the policy, premiums, and insurability of decedent to apply *Marriage of Burwell* (2013) 221 Cal.App.4th 1, a case cited by petitioner in support of the petition.

19. S-PR-0014084 In Re the Estate of Reed, Gloria L.

It is recommended the primary residence succession petition be denied. The terms of the will offered by petitioners include that "the home is to be sold and divided between Dan and Dennis." Petitioners are thus not devisees of the primary residence of decedent but only the proceeds of sale of the primary residence. Prob.C. § 13150 does not authorize a petition to determine succession to sale proceeds of estate property.

If the matter proceeds notwithstanding the foregoing recommended, the following additional calendar notes are provided:

Missing sufficient notice of hearing and service of notice of hearing. Mandatory form DE-115 is used only for Prob.C. § 850 petitions, as it states in ¶ 1. For other petitions, form DE-120 is required.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the court and the parties to prepare for the hearing. Local Rule 80.1.4.

20. S-PR-0014085 In Re the Estate of Christensen, Sandra Melvina

Missing sufficient notice of hearing and service of notice of hearing for petition to administer estate. Notice of hearing as filed and served relates only to a July 17 hearing that has been rescheduled by the court, rendering such notice ineffective. Petitioner was notified of the revised hearing date by clerk's notice dated June 1. New notice and service or waiver(s) are needed.

21. S-PR-0014088 In Re the Estate of Wills-Lee, Kimberly Diann

Missing sufficient publication of notice of hearing for petition to administer estate. Notice of hearing as published relates only to a July 17 hearing that has been rescheduled by the court, rendering publication ineffective. Petitioner was notified of the revised hearing date by clerk's notice dated June 1. New publication is needed.

Missing required allegations at ¶ 5a(3)-(4) (surviving RDP).

Requested bond amount is insufficient under Prob.C. § 8482 in light of the allegations at ¶ 3d of the petition.

22. S-PR-0014089 In Re the Carson Fam 1998 Trust

Appearance is required for hearing on petition to approve trust accounts and for other relief.

23. S-PR-0014090 In Re the Bruce W & Celia L Broadwell Fam Trust

Missing sufficient notice of hearing for petition to determine trust property. Use of mandatory form DE-115 is required for Prob.C. § 850 relief and to satisfy the content requirements of Prob.C. § 851(c)(1) & (3). DE-120, used by petitioner, is insufficient under Prob.C. § 851(c).